

Court No. - 39

Case :- WRIT - C No. - 43274 of 2014

Petitioner :- M/S Mahadev Kraft & Boards Pvt. Ltd. Thru' Director

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

By means of this writ petition, petitioner has challenged the demand notice dated 23.6.2014 issued by respondent no.2 demanding additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005.

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, appearing for the respondent nos.1 and 2 and Sri A.N. Singh, who has accepted notice on behalf of the respondent no.3.

Learned counsel for the petitioner submits that large number of identical writ petitions challenging the same demand notice have been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 passed in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Vs. Paschimanchal Vidyut Vitran Nigam Ltd. and others). It is also pointed out that in several writ petitions, identical questions are involved for adjudication.

Learned counsel for all the respondents may file counter affidavit within four weeks.

List after expiry of the aforesaid period along with record of Writ Petition (C) No. 51844 of 2009 and other connected writ petitions.

Notice is taken of the fact that though the writ petitions involving identical questions have been bunched together but the same could not be heard and decided on merits for want of counter affidavit from the respondent no.3. However, Sri A.N. Singh, appearing for the respondent no.3 has assured that in this case, counter affidavit will be filed within the time allowed.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above and various other writ petitions, it is provided without prejudice to the right and contention of the parties, untill further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 20.8.2014

Anil

Court No. - 39

Civil Misc. Listing Application No. 116537 of 2014

IN

Case :- WRIT - C No. - 43274 of 2014

Petitioner :- M/S Mahadev Kraft & Boards Pvt. Ltd. Thru'
Director

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2
Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Baleshwar Chaturvedi

Hon'ble Dilip Gupta, J.

Hon'ble Prabhat Chandra Tripathi, J.

List with the connected petitions mentioned in Paragraph 7 of
the application on 11 May 2017.

Order Date :- 12.4.2017

sartaj

(Dilip Gupta, J.)

(Prabhat Chandra Tripathi, J.)

Court No. - 35

Case :- WRIT - C No. - 43274 of 2014

Petitioner :- M/S Mahadev Kraft & Boards Pvt. Ltd. Thru' Director

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Baleshwar Chaturvedi

Hon'ble Bharati Sapru, J.

Hon'ble Shashi Kant, J.

List this matter in the next cause list.

Learned Counsel for the petitioner may serve notice on the Union of India that the matter will be taken up in the next cause list and obtain a receipt there of. Today, when the matter was called out in the revised list learned Counsel for the Union of India did not care to appear.

Order Date :- 11.5.2017

S.P.

Court No. - 35

Case :- WRIT - C No. - 43274 of 2014

Petitioner :- M/S Mahadev Kraft & Boards Pvt. Ltd. Thru' Director

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Baleshwar Chaturvedi

Hon'ble Bharati Sapru, J.

Hon'ble Shashi Kant, J.

This petition has been filed for quashing the demand notice requiring the petitioner to pay additional security.

It is pointed out by learned counsel for the parties that the issues raised in this petition have been decided against the petitioner in **Writ-C No.30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt.) Vs. State of U.P. & Ors.)** by judgment and order dated 21 March, 2017 whereby this Court has dismissed the writ petition after coming to the conclusion that the demand of additional security by the distribution licensee is not bad.

For all the reasons stated in the aforesaid judgment, this petition stands dismissed.

Order Date :- 22.5.2017

KA